

Copyright Status: Scientific American, August 1922

Summary

The image (a graph relating to the transatlantic cable, published in *Scientific American*, August 1922) is **in the public domain in the United States**. No permission is required to reproduce it.

Two independent legal grounds support this:

1. The issue was published before 1 January 1923 (the pre-1923 public domain cutoff under US copyright law).
2. The copyright was never renewed. *Scientific American* did not begin renewing copyrights on its issues until April 1930, so any work published in 1922 would have lost protection at the end of its initial 28-year term regardless.

Either ground alone is sufficient.

Sources

Primary reference — University of Pennsylvania Online Books Page:

- Scientific American serial entry: <https://onlinebooks.library.upenn.edu/webbin/serial?id=sciam>
- Detailed copyright/renewal records: <https://onlinebooks.library.upenn.edu/webbin/cinfo/sciam>

These pages are maintained by John Mark Ockerbloom (librarian, University of Pennsylvania) and the data is published under CC0. They are the standard reference for serial copyright status in the United States.

Key quotation from the serial entry:

"The first actively copyright-renewed issue is February 1931 (v. 144 no. 2), © January 17, 1931. The first actively copyright-renewed contribution is from February 1931."

The renewal records list begins with April 1930 as the earliest renewed issue. August 1922 does not appear, and could not appear — it predates any renewal *Scientific American* filed.

Why this matters under US copyright law

For works published in the United States between 1923 and 1963, copyright lasted an initial 28-year term and required active renewal to remain in force for a further term. Failure to renew put the work into the public domain.

Works published before 1923 entered the public domain automatically and have been in the public domain for many years. August 1922 is in this earlier category, so the analysis is straightforward.

Recommended attribution

Although no permission is required, it is good practice — both academically and for credibility of the reproduction — to credit the source. Suggested form:

█ From *Scientific American*, August 1922.

If the article or graph carries an author's or illustrator's name, include that as well.

Trademark caveat

The Scientific American website notes that even where content is in the public domain, the *Scientific American* name and masthead remain protected as trademarks:

█ "We cannot provide advice about whether specific content is in the public domain. Note: Trademark rules may still apply to content in the public domain."
— <https://www.scientificamerican.com/contact-us/>

Practical implications:

- Reproducing the graph itself: fine.
- Crediting the source as "*Scientific American*, August 1922": fine (factual nominative use of the trademark).
- Using the *Scientific American* logo or masthead in a way that implies endorsement, sponsorship, or affiliation: avoid.

Records to keep

For a defensible paper trail, save copies (PDF or screenshot) of:

1. The Online Books Page serial entry: <https://onlinebooks.library.upenn.edu/webbin/serial?id=sciam>
2. The detailed renewal records list: <https://onlinebooks.library.upenn.edu/webbin/cinfo/sciam>
3. The Scientific American contact/permissions page noting the trademark point: <https://www.scientificamerican.com/contact-us/>

Jurisdictional note

The above analysis is for the United States. Copyright terms differ in other jurisdictions and are generally based on the life of the author plus a number of years (70 years in the UK and EU; 50 in some other countries). If the author/illustrator of the August 1922 graph is unknown or corporate, the work is also likely to be out of copyright in the UK and EU under the rules for anonymous or pre-1900-author works, but this should be verified separately if the work is to be published outside the US.
